Electronic Communications Agreement

Updated as of Mar 19, 2026

Erebor Bank, N.A., its designees, service providers, affiliates, subsidiaries, successors and assigns (together, "**we**", "**us**", or "**our**") may need to provide you with certain information, agreements, notices or disclosures in writing in connection with products and services offered by us (each, a "**Communication**" and as further defined below). By agreeing to this Electronic Communications Agreement (this "**Agreement**"), you are confirming your ability, and providing your consent, to receive Communications electronically from us instead of in paper form and to the use of electronic signatures in our relationship with you. Without limiting the foregoing, you further agree that Communications may be provided to you via email (to any email address that we associate with you), online, in an app, through device notifications, and/or other electronic notification methods supported by the software you use to access our product or service. It is your responsibility to review all Communications that we provide to you. We may, at our discretion, mail paper copies of Communications to you, in addition to or instead of sending them to you electronically.

Consent

You understand and agree that: (i) this Agreement, together with the terms of the products or service that we are offering, will be entered into electronically; (ii) you meet the minimum hardware and software requirements specified below; (iii) your consent to receive Communications electronically will remain valid until you withdraw your consent, at which point we may close your account and/or discontinue offering you certain services; and (iv) Communications that we may provide to you electronically include, but are not limited to, the following:

- Any agreements, including the terms relating to the product or service that we are offering to you and this Agreement, disclosures, notices, fee schedules, statements, and records, and any subsequent changes to and versions of these documents;
- The Erebor Bank, NA Privacy Policy, as well as annual notices and other disclosures regarding the Privacy Policy;
- Information regarding any account you have with us, including statements, authorizations, and transaction histories;
- Notices to you of the resolution of any disputes or errors regarding your account(s);
- Any documents that you sign or submit or agree to at our request; and
- Certain informational Tax Documents (as defined and subject to additional terms below).

Your consent to electronic delivery of Communications under this Agreement applies to all Communications relating to any products and services we make available to you, whether now existing or offered in the future, even if you previously elected to receive paper statements or disclosures. This consent will remain effective unless and until you withdraw it in accordance with this Agreement.

Hardware and Software Requirements

To receive Communications, you must meet the following hardware and software requirements:

- Have a device with internet access;
- Have a browser that is currently supported by its publisher and capable of accessing HTML websites to view and retain documents in commonly used electronic formats, including by downloading;
- Have a valid email address that you provided to us; and
- Have a valid method to enable two-factor authentication.

Your device must have the ability to electronically store or print Communications. We reserve the right to discontinue support of a browser or other electronic access method if it suffers from a security flaw or other flaw that makes it unsuitable for use.

Requesting Paper Copies & Withdrawing Consent

You may request copies of Communications in paper or non-electronic form at no cost by calling +1 (614) 233-1797.

You have the right to withdraw your consent at any time, at which point we may close any account you have with us or restrict or terminate your access to a product or service that we offer. To withdraw your consent call +1 (614) 233-1797.

Your withdrawal of consent is effective only after we have had a reasonable period of time to act upon your withdrawal. Withdrawal of consent to electronic delivery will not affect the legal effectiveness, validity, or enforceability of Communications previously provided electronically. Withdrawal of consent will only apply to those Communications that are required by law or regulation to be provided to you in paper form. We may continue to communicate with you electronically where not prohibited by applicable law.

Termination and changes

We reserve the right, in our sole discretion, to discontinue providing Communications electronically or to terminate or amend this Agreement at any time. We will provide notice of any such termination or amendment as required by applicable law. To the extent not prohibited by applicable law, such changes will not require your consent, and your continued use of any product or service after the effective date of the changes constitutes your acceptance of the revised Agreement.

Access to Communications

You confirm that you have accessed this Agreement in electronic form and are able to access, read, and retain this Agreement and other Communications in electronic form. You are responsible for maintaining a valid and current email address and other contact information and for promptly notifying us of any changes. Communications may be made available for a limited period of time, and you are responsible for retaining copies for your records.

EREBOR